

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 32
JUDICIAL OFFICER: JONI T HIRAMOTO
HEARING DATE: 06/26/2026

ALL APPEARANCES WILL BE BY ZOOM.

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties

EMAIL THE DEPARTMENT at dept32@contracosta.courts.ca.gov to request argument and

SPECIFY THE ISSUES to be argued.

Counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of his or her intention to appear and of the issues to be argued.

Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Local Rule 3.43(2).)

CourtCall will **NOT** be used by D32.

Zoom is approved for all hearings except Issue Conferences and Trials.

Dept. 32's telephone number is: (925) 608-1132.

Dept. 32's email address is: dept32@contracosta.courts.ca.gov.

Submission of Orders After Hearing in Department 32 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/1613360625?pwd=pSvvmR75t9Q2H5zOgagi9rbG4xeTUM.1>

Meeting ID: 161 336 0625

Passcode: 180770

Law & Motion

1. 9:00 AM CASE NUMBER: C22-02389

CASE NAME: GAUDENCIO CUEVAS VS. JOSE SAUCEDO

HEARING ON SUMMARY MOTION

FILED BY: SAUCEDO, JOSE

TENTATIVE RULING:

Before the Court is Defendant Sergio Rene Margarito and Defendant Jose Saucedo (collectively, "Defendants")'s motion for summary judgment or in the alternative summary adjudication. The motion relates to Plaintiff Gaudencio Cuevas ("Plaintiff")'s complaint for motor vehicle negligence. Defendants move on the grounds that Plaintiff's action is barred by the workers' compensation exclusivity rule.

As a threshold issue, the Court declines to consider any of the evidence adduced by Defendants on reply. (*Plenger v. Alza Corp.* (1992) 11 Cal.App.4th 349, 362, fn. 8 [in summary judgment case, trial court had discretion to consider new evidence in reply papers as long as other party had opportunity to respond].) Plaintiff's objections to this material are well-taken.

For the following reasons, Defendants' motion is **granted**.

Request for Judicial Notice

On reply, Defendants request judicial notice of the first amended answer file dated September 2, 2025 and the joint stipulation and order granting Defendants leave to file an amended answer dated August 27, 2025. The Court may take judicial notice of this pleading and order, but not the truth of the allegations asserted therein. (*Day v. Sharp* (1975) 50 Cal.App.3d 904, 914, 918; Evid. Code §§ 452(a), 452(d), 453.) Subject to that limitation, the request is **granted**.

Legal Standard

Summary judgment is proper "if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Code Civ. Proc. § 437c(c).) Where a defendant seeks summary judgment or adjudication, he must show that either "one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to that cause of action." (*Id.* at § 437c(o)(2).) A defendant may satisfy this burden by showing that the claim "cannot be established" because of the lack of evidence on some essential element of the claim. (*Union Bank v. Superior Court* (1995) 31 Cal.App.4th 574, 590.) Once the defendant meets this burden, the burden shifts to the plaintiff to show that a "triable issue of one or more material facts exists as to that cause of action or defense thereto." (*Ibid.*)

The moving party bears the initial burden of production to make a *prima facie* showing that there are no triable issues of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) A defendant moving for summary judgment must show either (1) that one or more elements of the cause of action cannot be established or (2) that there is a complete defense to that cause of action. (*Id.* at § 437c(p).)

Until the moving defendant has discharged its burden of proof, the opposing plaintiff has no burden to come forward with any evidence. Once the moving defendant has discharged its burden as to a particular cause of action, however, the plaintiff may defeat the motion by producing evidence showing that a triable issue of one or more material facts exists as to that cause of action. (*Id.* at § 437c(p)(2).) On a motion for

summary judgment, the moving party's supporting documents are strictly construed and those of his opponent liberally construed, and doubts as to the propriety of summary judgment should be resolved against granting the motion. (*D'Amico v. Board of Medical Examiners* (1974) 11 Cal.3d 1, 21.)

Brief Factual Background

It is undisputed that Plaintiff Gaudencio Cuevas was employed with All Clean Gutters & Roofing, Inc. on the day of the accident in Redwood City. (UMF 1.) Defendant Jose Saucedo served as Plaintiff's supervisor. (UMF 6.) Defendant Sergio Rene Margarito was also employed by All Clean Gutters & Roofing. (UMF 7.)

The subject collision occurred on November 5, 2020 at approximately 6 p.m. (UMF 9.) At the time of the subject collision, Defendant Sergio Rene Margarito was driving the vehicle, with Plaintiff Gaudencio Cuevas and another All Clean Gutters employee, Patricio Torres, riding as passengers. (UMF 10.) Plaintiff and Defendant Margarito were traveling from a job site in Redwood City. (UMF 11.) At the time of the incident, Plaintiff Gaudencio Cuevas and Defendant Sergio Rene Margarito were travelling to return the pickup truck to its designated and customary drop-off location, where All Clean Gutters employees routinely left the vehicle after completing a job assignment. (UMF 13.)

Analysis

Defendants move for summary judgment on the grounds they are immune from liability under the California Workers' Compensation Act, Labor Code section 3200 et seq. "Subject to certain narrowly defined exceptions, the California Workers' Compensation Act provides the exclusive remedy for injuries arising within the course of employment." (*Pichon v. Pacific Gas & Electric Co.* (1989) 212 Cal. App. 3d 488, 494; see Labor Code, § 3600 [liability for workers' compensation shall, without regard to negligence, exist against an employer for any injury sustained by its employees arising out of and in the course of the employment]; Labor Code, § 3602 [where the injury is proximately caused by the employment, workers' compensation is the "sole and exclusive remedy" for an employee against his employer].) The Workers' Compensation Act requires employers to "secure the payment of compensation" for employees, either by obtaining liability coverage from an authorized insurer or by self-insuring. (Labor Code, § 3700, subds. (a), (b).) In addition, the Workers' Compensation Act provides: "If an employer fails to secure the payment of compensation, any injured employee or his dependents may bring an action at law against such employer for damages, as if [this Act] did not apply." (Labor Code, § 3706.)

Plaintiff argues that Defendants did not assert Workers' Compensation exclusivity as an affirmative defense in their answer to Plaintiff's Complaint and cannot assert the

defense for the first time on summary judgment. First, this does not appear to be accurate representation of the operative pleadings; Defendant Sergio Rene Margarito's amended answer pleads workers' compensation exclusivity as his twenty-ninth affirmative defense. It does appear, however, that Defendant Jose Saucedo's answer omits the affirmative defense of workers' compensation exclusivity. Second, Plaintiff's complaint alleges that Jose Saucedo and Sergio Rene Margarita were operating a motor vehicle in the course of their employment. These alleged facts indicate coverage by the Workers' Compensation Act and are sufficient to raise the exclusivity defense on summary judgment. (See *Doney v. Tambouratgis* (1979) 23 Cal. 3d 91; see also *Gibbs v. Am. Airlines, Inc.* (1999) 74 Cal. App. 4th 1, 12–13.) For the same reasons, the Court finds Plaintiff's argument that Defendants must adduce evidence of their workers' compensation policy on summary judgment lacks merit. "A defendant need not plead and prove that it has purchased workers' compensation insurance where the plaintiff alleges facts that otherwise bring the case within the exclusive province of workers' compensation law, and no facts presented in the pleadings or at trial negate the workers' compensation law's application or the employer's insurance coverage." (*Gibbs, supra*, 74 Cal. App. 4th at p.14 [citing *Doney, supra*, 23 Cal. 3d at pp.97-98].) Furthermore, Plaintiff does not contend that there is no workers' compensation coverage or there is inadequate coverage. Defendants are entitled to bring their motion on this issue.

The critical issue on this motion is whether Plaintiff's injuries occurred in the course and scope of his employment. This determination requires a two-prong analysis. (*LaTourette v. Workers' Comp. Appeals Bd.* (1998) 17 Cal.4th 644.) First, the injury must occur "in the course of employment," which ordinarily "refers to the time, place, and circumstances under which the injury occurs." (*LaTourette, supra*, at 645.) Second, the injury must "arise out of" the employment, "that is, occur by reason of a condition or incident of employment, [however], the injury need not be of a kind anticipated by the employer nor peculiar to the employment in the sense that it would not have occurred elsewhere." (*Employers Mut. Liability Ins. Co. v. Industrial Acci. Com.* (1953) 41 Cal.2d 676, 679–680.) "All that is required is that the employment be one of the contributing causes without which the injury would not have occurred." (*South Coast Framing v. Workers' Comp. Appeals Bd.* (2015) 61 Cal.4th 291, 297–298, quoting *LaTourette, supra*, at 651, fn. 1; *Maher v. Workers' Comp. Appeals Bd.* (1983) 33 Cal.3d 729, 734, fn. 3.) Moreover, "where the injury occurs on the employer's premises while the employee is in the course of his employment, the injury also arises out of the employment unless the connection is so remote from the employment that it is not an incident thereof" (*California Compensation & Fire Co. v. Workers' Comp. Appeals Bd.* (1968) 68 Cal.2d 157, 160.)

Here, it is undisputed that at the time of the collision, Defendant Sergio Rene Margarito was operating the vehicle in the course of his employment with All Clean Gutters. (UMF 20.) Specifically, at the time of the incident, Plaintiff and Defendant were travelling to return the pickup truck to its designated and customary drop-off location, where All Clean Gutters employees routinely left the vehicle after completing a job assignment. (UMF 13.)

Plaintiff's argument that he was a "mere passenger" lacks merit. Plaintiff has not cited any authority, and the Court is not aware of any, that would exempt a passenger from workers' compensation exclusivity under these facts.

Neither does the going and coming rule bring this case outside of the workers' compensation statutory framework. It is true that "[a]n employee's commute to and from the workplace is generally not considered to be within the course and scope of employment." (*Newland v. County of Los Angeles* (2018) 24 Cal.App.5th 676, 685.) "This rule, commonly referred to as the 'going and coming rule,' is grounded in the notion that 'the employment relationship is "suspended" from the time the employee leaves until he returns [citation], or that in commuting he is not rendering service to his employer.'" (*Id.* at 686.)

However, exceptions are made "where the trip involves an incidental benefit to the employer, not common to commute trips by ordinary members of the work force." (*Jorge v. Culinary Institute of America* (2016) 3 Cal. App. 5th 382, 398.) "[T]his means not just any trivial benefit to the employer, but a benefit 'sufficient enough to justify making the employer responsible for the risks inherent in the travel.'" (*Id.* at 398.) Here, it is undisputed that Plaintiff and Defendant were travelling to return the pickup truck to its designated and customary drop-off location. (UMF 13.) This was a work-related task. And while Plaintiff attempts to draw a distinction between the driving employee and himself as a passenger in the same work truck, that distinction is not supported by the Labor Code or any case law.

Finally, the Court finds no basis for equitable estoppel from asserting workers' compensation exclusivity based on communications with Defendant Saucedo's insurance carrier. Even if this communication were admissible, it does not appear on its face to be a factual misrepresentation regarding the availability (or exclusivity) of workers' compensation.

Evidentiary Objections

The Court rules only on those objections material to the Court's ruling on the motion for summary judgment. (Code Civ. Proc. § 437c(q).)

Plaintiff's objection to Defendants Reply Separate Statement is **sustained**.

Plaintiff's objection to the Declaration of Vicky Pham and exhibits thereto is **sustained**.

Defendants' objection to Plaintiff's Exhibit F is **sustained**.

2. 9:00 AM CASE NUMBER: C22-02814

CASE NAME: NA WANG VS. SETH WIENER

*HEARING ON MOTION IN RE: OF INTENTION TO MOVE TO VACATE SANCTIONS AND TO SET ASIDE THE DISMISSAL

FILED BY: WANG, NA

TENTATIVE RULING:

On December 19, 2025, the court granted Defendant Seth W. Weiner's Motion for Terminating Sanctions and ordered the case dismissed with prejudice.

Before the court is Plaintiff Na Wang's Motion to Set Aside Dismissal, and Motion to Vacate Orders and Sanctions, filed May 11, 2026.

Plaintiff's Request for Judicial Notice filed May 11, 2026 is granted. Judicial notice is not necessary for the court to take notice of its own orders and of pleadings in the instant court file.

Defendant's Request for Judicial filed June 12, 2026 is also granted.

Plaintiff's motions fail to state grounds upon which the court can order relief.

Relief is unavailable under Code of Civil Procedure (CCP) § 437(b) for several reasons. First, Plaintiff did not file her motion until May 11, 2026 --four months and 22 days after the order dismissing the case with prejudice on December 29, 2026. Courts recognize that a delay exceeding three months is unreasonable where the litigant provides no evidence to justify the delay. (*Minick v. City of Petaluma* (2026) 3 Cal. App. 5th 15, 35. Here the Plaintiff offers no evidence justifying her delay in filing.

In addition, Plaintiff does not offer any excusable neglect, but instead re-asserts her failure to appear at a court-ordered deposition date as due to "equipment failure." Plaintiff's explanation was not found credible by the court at the December 19, 2025 hearing and in any event it has no bearing on why it took four months and 22 days to file her instant motion. Plaintiff's "equipment failure" argument does not constitute excusable neglect for filing the instant motions on May 11, 2026.

Plaintiff cannot obtain relief pursuant to CCP § 663 because that section addresses setting aside a judgment, not a dismissal. Even if this were a judgment, Section 663 requires a Notice of Intention to be filed and served within 15 days after entry of dismissal. Defendant served the order dismissing the action electronically on December 19, 2025 and served notice of the entry of the order of dismissal on Plaintiff by electronic service on December 30, 2025. See Notice of Entry of Dismissal filed December 30, 2025. Plaintiff filed her Notice of Intention 57 days later on February 25, 2026. See Plaintiff's Notice of Intention to Move to Vacate Sanctions and Set Aside the Dismissal, filed February 25, 2026. Thus, even if this were the proper vehicle for Plaintiff her Notice of Intention was untimely.

In addition, Plaintiff's Notice of Intention did not "designate the grounds upon which the motion will be made and specifying the particulars in which the legal basis for the decision is not consistent with or supported by the facts," as required by Section 663(a).

The court agrees that the Plaintiff's motions are the equivalent of a Motion for Reconsideration under CCP § 1008. However, Plaintiff has failed to seek reconsideration within ten days of the order of dismissal, as required by the statute. In addition, Plaintiff fails to assert "new or different facts, circumstances, or law," as required by Section 1008.

Plaintiff's Motion to Set Aside Dismissal, and Motion to Vacate Orders and Sanctions are **denied**.

3. 9:00 AM CASE NUMBER: C22-02814
CASE NAME: NA WANG VS. SETH WIENER
*HEARING ON MOTION IN RE: TO VACATE ORDER AND SANCTIONS
FILED BY: WANG, NA
TENTATIVE RULING:

See Line 2 above.

4. 9:00 AM CASE NUMBER: C23-00634
CASE NAME: JANE DOE VS. GOLDEN GATE BELL, LLC.
*HEARING ON MOTION IN RE: AS TO BRUCE GRIGGS FOR DEF GOLDEN GATE BELL AND
DIVERSIFIED RESTAURANT GROUP, LLC
FILED BY: GOLDEN GATE BELL, LLC.
TENTATIVE RULING:

Before the Court is an application by Texas attorney Bruce Griggs to be admitted to appear in this specific civil action *pro hac vice*. The application was originally filed

May 19, 2026 and set for hearing on October 9, 2026 in this department.

The application is **denied without prejudice** for lack of proof that the *ex parte* order filed June 10, 2026 advancing hearing on this motion from October 9, 2026 to June 26, 2026 was served on all parties.

Parties are ordered to appear.

The application may be granted at hearing subject to hearing from the Plaintiff.

5. 9:00 AM CASE NUMBER: C23-02087

CASE NAME: JOHN BROSNAN VS. GEICO INDEMNITY COMPANY

*HEARING ON MOTION IN RE: FOR DISMISSAL OF PENDING ACTION WITH PREJUDICE

FILED BY: GARCIA, GINA

TENTATIVE RULING:

Before the Court is a motion by defendant Gina Garcia for judgment of dismissal of the pending action with prejudice. For the reasons set forth, the motion is **granted**.

Background

Plaintiff John Brosnan alleges he was in a car accident in which defendant Gina Garcia struck his vehicle. He asserts a claim for negligence against her arising out of the accident. The complaint also named Geico Indemnity Company as a defendant. Geico filed a demurrer to the complaint which was sustained without leave to amend as reflected in the Court's Minute Order of January 26, 2024. (Kilroy Decl. ¶¶ 5, 6 and Exh. B.)

Brosnan filed his complaint initiating this action on August 23, 2023. The complaint reflects he was represented by counsel Sanford Steven Troy when the action commenced. Plaintiff alleges in the complaint that the accident occurred on August 3, 2021. The complaint on its face shows it was filed more than two years after the accident.

On June 24, 2024, a substitution of counsel was filed by which Plaintiff's counsel substituted out of the case and Brosnan began representing himself. Thereafter, he personally served defendant Garcia, and on October 21, 2024, defendant Garcia filed a demurrer to the complaint based on the statute of limitations. (Kilroy Decl. ¶¶ 7-10.) The demurrer was sustained without leave to amend pursuant to the Court's tentative ruling, adopted on February 21, 2025 as reflected in the Court's minute order of that date. On February 6, 2026, counsel for Garcia served and filed a belated notice of ruling with a copy of the February 21, 2025 minute order. (See Kilroy Decl. ¶¶ 8-11 and Exh. C.)

Garcia moves for entry of a judgment of dismissal under Code of Civil Procedure § 581(f)(1). Brosnan opposes the motion.

Dismissal under Code of Civil Procedure § 581 and Analysis

Code of Civil Procedure § 581(f) provides in relevant part, "The court may dismiss the complaint as to that defendant when: [¶] (1) Except where Section 597 applies, after a demurrer to the complaint is sustained without leave to amend and either party moves for dismissal." (Code Civ. Proc. § 581(f)(1).) The exception stated in that statute does not apply. Code of Civil Procedure § 597 applies where there is a trial of certain special defenses, which did not occur here as the complaint on its face shows it was filed after the two-year statute of limitations for a claim based on negligence had expired.

Plaintiff does not dispute or address the provisions of Code of Civil Procedure § 581(f)(1), which clearly apply here and warrant dismissal of the action with prejudice based on the order sustaining Garcia's demurrer with prejudice. Plaintiff instead raises issues regarding (1) his complaint to the California State Bar regarding his former counsel's alleged wrongful abandonment of him as a client, and (2) a prior complaint he filed against Garcia in this Court, Case No. MSC23-00498 ("Prior Action"), in which Plaintiff, a designated vexatious litigant, was ordered to obtain a prefiling order, and Brosnan concedes he did not obtain within the ten-day time frame stated by the Court in a Minute Order issued April 28, 2023. (Brosnan Opp. ¶¶ 16, 17.) He contends that attorney Troy represented him in the Prior Action and was identified as his counsel in the complaint initiating the Prior Action, and that the determination that he needed to obtain a prefiling order was in error. (Opp. ¶¶ 25-27.)

None of the issues raised in the opposition are properly before the Court on this motion. The only issue the Court can resolve on this motion is whether dismissal the grounds for entry of a judgment of dismissal of the claims against Garcia have been established under Code of Civil Procedure § 581(f)(1), and they undisputedly are satisfied.

Other remedies may be, or may have been, available to address the issues raised in Plaintiff's opposition regarding the Prior Action or the alleged acts or omissions of Plaintiff's former counsel. Indeed, Plaintiff's opposition shows that he has a complaint with the State Bar regarding his former counsel's conduct which appears to have been reopened in June 2025. Those issues, however, are not properly before the Court on the pending motion.

6. 9:00 AM CASE NUMBER: C23-02738
CASE NAME: WILLIAM WALKER VS. GEORGE WHITEHEAD
HEARING ON SUMMARY MOTION JUDGMENT
FILED BY: ABM GENERAL SERVICES, INC
TENTATIVE RULING:

Before the Court is a motion for summary judgment by defendant ABM General Services, Inc. For the reasons set forth, the hearing on the motion for summary judgment is **continued to 9:00 a.m. on August 7, 2026.**

Background

Plaintiff William Walker alleges he was injured in a motor vehicle accident on December 16, 2021 when his vehicle was struck by a box truck being driven by George Whitehead. (Compl. ¶¶ 12, 14.) Defendants ABM Industries, Inc. and ABM General Services, Inc. were added as Doe defendants in April 2024. (Voss Decl. Exhs. B, C.)

ABM General moves for summary judgment. Plaintiff opposes the motion. Plaintiff, however, has not complied with Rule 3.1350 in Plaintiff's Response ("Resp.") to Defendant ABM General Services, Inc.'s Separate Statement ("SS") of Undisputed Material Facts ("UMFs") for a number of reasons. The Court exercises its discretion to continue the hearing to provide Plaintiff an opportunity to cure the deficiencies in his Response to the SS. (*Parkview Villas Assn., Inc. v. State Farm Fire & Casualty Co.* (2005) 133 Cal.App.4th 1197, 1210-1216.)

Governing Law on Response to Moving Party's Separate Statement

Code of Civil Procedure section 437c(b) addresses the requirements for an opposition to a motion for summary judgment. With response to the opposition to the SS, the statute provides, "The opposition papers shall include a separate statement that responds to each of the material facts contended by the moving party to be undisputed, indicating if the opposing party agrees or disagrees that those facts are undisputed. The statement also shall set forth plainly and concisely any other material facts the opposing party contends are disputed. Each material fact contended by the opposing party to be disputed shall be followed by a reference to the supporting evidence. Failure to comply with this requirement of a separate statement may constitute a sufficient ground, in the court's discretion, for granting the motion. (Code Civ. Proc. § 437c(b)(3) [emphasis added].)

In addition, Rule 3.1350 of the California Rules of Court elaborates on the form and content of the Response to the SS supporting the party's opposition to the motion. Among other things, Rule 3.1350(f) requires the Response to the SS to be "in the two-column format specified" in Rule 3.1350(h), a rule which provides

images of examples of the proper format. (Cal. R. Ct., Rules 3.1350(f) and (h).) Rule 3.1350(f) further provides that "[e]ach material fact claimed by the moving party to be undisputed must be set out verbatim on the left side of the page, below which must be set out the evidence said by the moving party to establish that fact, complete with the moving party's references to exhibits." (Cal. R. Ct., Rule 3.1350(f)(1) [emphasis added].)

When Plaintiff responds to a UMF in the Response to the SS, Rule 3.1350(f) also directs, "On the right side of the page, directly opposite the recitation of the moving party's statement of material facts and supporting evidence, the response must unequivocally state whether that fact is "disputed" or "undisputed." An opposing party who contends that a fact is disputed must state, on the right side of the page directly opposite the fact in dispute, the nature of the dispute and describe the evidence that supports the position that the fact is controverted. Citation to the evidence in support of the position that a fact is controverted must include reference to the exhibit, title, page, and line numbers." (Cal. R. Ct., Rule 3.1350(f)(2) [emphasis added].)

Deficiencies in Plaintiff's Response to the SS and Deposition Excerpts

The Court has compared the UMFs stated in the moving party's SS in support of the motion to the UMFs listed in Plaintiff's Response. The moving party's SS lists 28 UMFs; Plaintiff's Response lists 18 UMFs in the first column under the heading "Defendant ABM General's Undisputed Material Fact and Supporting Evidence" preceding a section titled "Plaintiff's Additional Material Facts." (Pl. Resp. pp. 2-4.) There is no explanation in the papers for the discrepancy. The 18 UMFs are not verbatim statements of ABM General's UMFS from the ABM General SS, and they do not set forth the evidence stated by ABM General establishing the fact stated. (Code Civ. Proc. § 437c(b)(3); Cal. R. Ct., Rule 3.1350(f)(1).) It is unclear to the Court what the source of the UMFs listed in Plaintiff's Response is, but in any event, the UMFs are not the UMFs stated in the filed SS in support of ABM General's motion.

Plaintiff lists the evidence Plaintiff contends supports Plaintiff's response to the UMF in a third column titled "Plaintiff's Supporting Evidence," notwithstanding that the Rule mandates a two-column format. (Cal. R. Ct., Rule 3.1350(f)(1).) Further, if a fact is undisputed, then for purposes of the motion, the fact is established; no additional evidence cited by Plaintiff needs to be offered or considered by the Court to establish an undisputed fact. (*See, e.g.*, UMFs 1-3 listed as "undisputed" with Plaintiff's citation to Plaintiff's evidence in the third column that is different from the evidence offered the moving party to establish the fact]; *Myers v. Trendwest Resorts, Inc.* (2009) 178 Cal. App. 4th 735, 747 ["That Myers

focuses on facts set forth in the statement of undisputed facts rather than in the memorandum of points and authorities makes no difference. As a leading treatise explains, "The agreement in the separate statement that a fact is "undisputed" is a concession only for purposes of the summary judgment motion. It is not evidence (because not under oath or verified); nor is it a judicial admission.' [Citations omitted.] . . . [S]eparate statements of undisputed facts in support of a motion for summary judgment or adjudication make no binding judicial admissions. [Citations omitted.]".) Yet, for facts listed as undisputed, Plaintiff fails to include in the first column (or anywhere in the Response to the SS) the evidence the moving party cited to establish the UMF in the SS, and Plaintiff instead cites his own evidence in the third column.

As to those facts which Plaintiff's lists as disputed, in many instances the evidence Plaintiff cites in the (erroneous) third column does not contain proper citations to the evidence, or at least citations to the evidence that the Court can decipher or that is consistent. For example, in Plaintiff's Response to UMFs 1 and 2, Plaintiff refers in one instance to "Antioch Police Department Report No. 21-010311 (Exhibit J to Compendium)" but in the other to "Police Report: DiDomenico PMK Dep. 4/30/2026." There is no reference to the specific exhibit number or letter or where the document is located, i.e., in Plaintiff's compendium of evidence or as an exhibit to a declaration, or in evidence filed by the moving party. The general reference to the DiDomenico PMK Deposition of April 30, 2026 does not cite to any page or line number of the deposition or explain the connection between the police report cited and the deposition transcript cited. (Pl. Resp. to UMFs 1 and 2.) (*See also* Pl. Resp. to UMF 10.) (Cal. R. Ct., Rule 3.1350(f)(2).)

Other evidence citations refer to exhibits to the DiDomenico PMK deposition, but Exhibit I to Plaintiff's compendium of exhibits, which are the PMK deposition excerpts, does not have any exhibits attached. If the document referred to as an exhibit to the PMK deposition is attached separately as an exhibit to the compendium, the exhibit letter to the compendium is not identified. (*See, e.g.*, Pl. Resp. to UMFs 4-9.) (Cal. R. Ct., Rule 3.1350(f)(2).)

The portions of deposition transcript excerpts a party cites and relies on are required to be marked in brackets or highlighted. (Cal. R. Ct., Rule 3.1116(c) ["The relevant portion of any testimony in the deposition must be marked in a manner that calls attention to the testimony."].) The deposition excerpts attached as Exhibit I to Plaintiff's compendium are not bracketed or highlighted. (*Compare to* Voss Decl. Exhs. I and J.)

Opportunity to Cure and Continued Hearing

The Court considers Plaintiff's Response to the SS to have technical defects that warrant the Court exercising its discretion to provide Plaintiff an opportunity to correct the deficiencies highlighted above and file a compliant Response to the SS. (*Parkview Villas, supra*, 133 Cal.App.4th at 1210-1216.) Plaintiff shall file an amended Response to SS and Additional Material Facts in compliance with Code of Civil Procedure § 437c(b)(3) and California Rules of Court, Rule 3.1350(f) and (h). Plaintiff shall also file an amended compendium of exhibits with the deposition excerpts that Plaintiff cites and relies on highlighted in accordance with California Rules of Court, Rule 3.1116(c). Plaintiff shall file these amended opposition papers **by July 10, 2026**. The hearing shall be continued to **9:00 a.m. on August 7, 2026**. The moving party may, but is not required, to file a supplemental reply to address Plaintiff's amended response to the SS to the extent not otherwise covered in the reply on file. Any supplemental reply shall be filed **at least 11 calendar days prior to the continued hearing**.

7. 9:00 AM CASE NUMBER: C23-02738
CASE NAME: WILLIAM WALKER VS. GEORGE WHITEHEAD
HEARING ON SUMMARY MOTION JUDGMENT
FILED BY: ABM INDUSTRIES, INC
TENTATIVE RULING:

Before the Court is a motion for summary judgment by defendant ABM Industries, Inc. For the reasons set forth, the hearing on the motion for summary judgment is **continued to 9:00 a.m. on August 7, 2026**.

Background

Plaintiff William Walker alleges he was injured in a motor vehicle accident on December 16, 2021 when his vehicle was struck by a box truck being driven by George Whitehead. (Compl. ¶¶ 12, 14.) Defendants ABM Industries, Inc. and ABM General Services, Inc. were added as Doe defendants in April 2024. (Voss Decl. Exhs. B, C.)

ABM Industries moves for summary judgment. Plaintiff opposes the motion. Plaintiff, however, has not complied with Rule 3.1350 in Plaintiff's Response ("Resp.") to Defendant ABM Industries, Inc.'s Separate Statement ("SS") of Undisputed Material Facts ("UMFs") for a number of reasons. The Court exercises its discretion to continue the hearing to provide Plaintiff an opportunity to cure the deficiencies in his Response to the SS. (*Parkview Villas Assn., Inc. v. State Farm*

Fire & Casualty Co. (2005) 133 Cal.App.4th 1197, 1210-1216.)

Governing Law on Response to Moving Party's Separate Statement

Code of Civil Procedure section 437c(b) addresses the requirements for an opposition to a motion for summary judgment. With response to the opposition to the SS, the statute provides, "The opposition papers shall include a separate statement that responds to each of the material facts contended by the moving party to be undisputed, indicating if the opposing party agrees or disagrees that those facts are undisputed. The statement also shall set forth plainly and concisely any other material facts the opposing party contends are disputed. Each material fact contended by the opposing party to be disputed shall be followed by a reference to the supporting evidence. Failure to comply with this requirement of a separate statement may constitute a sufficient ground, in the court's discretion, for granting the motion. (Code Civ. Proc. § 437c(b)(3) [emphasis added].)

In addition, Rule 3.1350 of the California Rules of Court elaborates on the form and content of the Response to the SS supporting the party's opposition to the motion. Among other things, Rule 3.1350(f) requires the Response to the SS to be "in the two-column format specified" in Rule 3.1350(h), a rule which provides images of examples of the proper format. (Cal. R. Ct., Rules 3.1350(f) and (h).) Rule 3.1350(f) further provides that "[e]ach material fact claimed by the moving party to be undisputed must be set out verbatim on the left side of the page, below which must be set out the evidence said by the moving party to establish that fact, complete with the moving party's references to exhibits." (Cal. R. Ct., Rule 3.1350(f)(1) [emphasis added].)

When Plaintiff responds to a UMF in the Response to the SS, Rule 3.1350(f) also directs, "On the right side of the page, directly opposite the recitation of the moving party's statement of material facts and supporting evidence, the response must unequivocally state whether that fact is "disputed" or "undisputed." An opposing party who contends that a fact is disputed must state, on the right side of the page directly opposite the fact in dispute, the nature of the dispute and describe the evidence that supports the position that the fact is controverted. Citation to the evidence in support of the position that a fact is controverted must include reference to the exhibit, title, page, and line numbers." (Cal. R. Ct., Rule 3.1350(f)(2) [emphasis added].)

Deficiencies in Plaintiff's Response to the SS and Deposition Excerpts

The Court has compared the UMFs stated in the moving party's SS in support of the motion to the UMFs listed in Plaintiff's Response. Plaintiff's Response lists 15

UMFs in the first column under the heading "Defendant ABMI's Undisputed Material Fact and Supporting Evidence" preceding a section titled "Plaintiff's Additional Material Facts." (Pl. Resp. pp. 2-4.) The 15 UMFs are not verbatim statements of ABM Industries' UMFS from the ABM Industries SS, and they do not set forth the evidence stated by ABM Industries establishing the fact stated. (Code Civ. Proc. § 437c(b)(3); Cal. R. Ct., Rule 3.1350(f)(1).) (See, e.g., UMFs 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15.) Admittedly, some of the UMFs are close to the UMF stated in the moving party's SS, but the Rule requires a verbatim statement of the UMF, not a paraphrase or a statement that omits any of the words used by the moving party in its UMF.

Plaintiff lists the evidence Plaintiff contends supports Plaintiff's response to the UMF in a third column titled "Plaintiff's Supporting Evidence," notwithstanding that the Rule mandates a two-column format. (Cal. R. Ct., Rule 3.1350(f)(1).) Further, if a fact is undisputed, then for purposes of the motion, the fact is established; no additional evidence cited by Plaintiff needs to be offered or considered by the Court to establish an undisputed fact. (See, e.g., UMFs 1-3 listed as "undisputed" with Plaintiff's citation to Plaintiff's evidence in the third column that is different from the evidence offered the moving party to establish the fact]; *Myers v. Trendwest Resorts, Inc.* (2009) 178 Cal. App. 4th 735, 747 ["That Myers focuses on facts set forth in the statement of undisputed facts rather than in the memorandum of points and authorities makes no difference. As a leading treatise explains, 'The agreement in the separate statement that a fact is "undisputed" is a concession only for purposes of the summary judgment motion. It is not evidence (because not under oath or verified); nor is it a judicial admission.' [Citations omitted.] [S]eparate statements of undisputed facts in support of a motion for summary judgment or adjudication make no binding judicial admissions. [Citations omitted.]"].) Yet, for facts listed as undisputed, Plaintiff fails to include in the first column (or anywhere in the Response to the SS) the evidence the moving party cited to establish the UMF in the SS, and Plaintiff instead cites his own evidence, or his own version of a citation to the moving party's evidence, in the third column. (See, e.g., UMFs 1-5.) The evidence supporting the UMF cited by the moving party in the SS is also supposed to be stated verbatim and in the same first column as the UMF. (Cal. R. Ct., Rule 3.1350(f)(1).)

As to those facts which Plaintiff's lists as disputed, in many instances the evidence Plaintiff cites in the (erroneous) third column does not contain proper citations to the evidence. For example, in Plaintiff's Response to UMFs 4 and 5 in the third column, Plaintiff identifies documents by their title, without any reference to the

exhibit letter or number and where it is located, such as an exhibit attached to the compendium of exhibits, an exhibit to the Miller Declaration, or an exhibit to a declaration filed by the moving party. (Cal. R. Ct., Rule 3.1350(f)(2).)

The portions of deposition transcript excerpts a party cites and relies on are required to be marked in brackets or highlighted. (Cal. R. Ct., Rule 3.1116(c) ["The relevant portion of any testimony in the deposition must be marked in a manner that calls attention to the testimony."].) The deposition excerpts attached as Exhibit I to Plaintiff's compendium are not bracketed or highlighted. (*Compare to* Voss Decl. Exhs. I and J.)

Opportunity to Cure and Continued Hearing

The Court considers Plaintiff's Response to the SS to have technical defects that warrant the Court exercising its discretion to provide Plaintiff an opportunity to correct the deficiencies highlighted above and file a compliant Response to the SS. (*Parkview Villas, supra*, 133 Cal.App.4th at 1210-1216.) Plaintiff shall file an amended Response to SS and Additional Material Facts in compliance with Code of Civil Procedure § 437c(b)(3) and California Rules of Court, Rule 3.1350(f) and (h). Plaintiff shall also file an amended compendium of exhibits with the deposition excerpts that Plaintiff cites and relies on highlighted in accordance with California Rules of Court, Rule 3.1116(c). Plaintiff shall file these amended opposition papers **by July 10, 2026**. The hearing shall be continued to **9:00 a.m. on August 7, 2026**. The moving party may, but is not required, to file a supplemental reply to address Plaintiff's amended response to the SS to the extent not otherwise covered in the reply on file. Any supplemental reply shall be filed **at least 11 calendar days prior to the continued hearing**.

8. 9:00 AM CASE NUMBER: C24-03387
CASE NAME: REBECCA MOSCHELLA VS. ASSAEDI ASSAEDI
*HEARING ON MOTION IN RE: SET ASIDE DEFAULT
FILED BY: ASSAEDI, ASSAEDI SAIF
TENTATIVE RULING:

Before the Court is Defendants Assaedi Saif Ahmed, Alsaid Azzya, and Stop & Save Gasoline's Motion to Set Aside Defaults.

Procedural Background

Plaintiff filed her Complaint on December 13, 2024. It contains a single cause of action for breach of contract related to a settlement agreement entered into by the parties

in an earlier action – Contra Costa Case No. C24-00738 (the “Underlying Action”).

On January 10, 2025, Plaintiff filed a Proof of Service of Summons indicating that Defendant Stop & Save Gasoline was served on January 9, 2025. Thereafter, on February 20, 2025, Plaintiff sought and received Entry of Default against Stop & Save Gasoline.

On March 27, 2025, Plaintiff filed a Proof of Service of Summons indicating that Defendant Alsaïd Azzya was personally served on February 17, 2025. On July 28, 2025, Plaintiff filed a Proof of Service of Summons indicating that Defendant Assaedi Saïf Ahmed was personally served on July 26, 2025.

On November 25, 2025, Plaintiff sought and obtained Entry of Default against Defendant Assaedi Saïf Ahmed.

On November 26, 2025, there was a CMC wherein counsel for Plaintiff and Defendants appeared via zoom. The minute order from that date notes that Defendant’s demurrer was rejected “due to adding all defendants but one Defendant is in default status.” (All caps removed.) The Court ordered counsel to meet and confer regarding stipulating to set aside default or indicating counsel should file a motion to set aside default against the defaulted Defendant (Stop & Save Gasoline).

On December 29, 2025, Plaintiff sought and obtained Entry of Default against Defendant Alsaïd Azzya.

Plaintiff filed a Request for Court Judgment on January 22, 2026.

On March 4, 2026, Defendants filed the instant motion to set aside default.

Legal Standard

Defendant moves to set aside the default judgment pursuant to California Code of Civil Procedure section 473 (b). “The statute includes a discretionary provision, which applies permissively, and a mandatory provision, which applies as of right.” (*Minick v. City of Petaluma* (2016) 3 Cal.App.5th 15, 25.) “Although this bifurcation is not demarcated in any internal subtitling, it is plainly evidence in the textual structure of the statute.” (*Ibid.*)

The ‘discretionary’ provision is set forth at the beginning of the statute:

The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake,

inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.

When moving to set aside a default under CCP §473(b), the moving party has the burden of proof. (*In re Marriage of Kieturakis* (2006) 138 Cal.App.4th 56, 88.) However, section 473 is often applied liberally when a party in default moves promptly to seek relief and the party opposing the motion will not suffer prejudice if relief is granted. (*Elston v. City of Turlock* (1985) 38 Cal.3d 227, 233.)

The ‘mandatory’ provision that relates to times when an attorney admits fault in causing the default is provided for in the later portion of the statute:

Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney’s sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney’s mistake, inadvertence, surprise, or neglect.

“[T]he court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney’s sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect vacate any ... resulting default [or default judgment] ... entered against his or her client....” (Code Civ. Proc. § 473, subd. (b).)

“Under the traditional *discretionary* provisions of section 473, a party seeking relief on the basis of its attorney’s neglect must show that the neglect was *excusable*.” (*Metropolitan Service Corp. v. Casa de Palms, Ltd.* (1995) 31 Cal.App.4th 1481, 1487.) An entirely different standard exists under the mandatory relief provisions in section 473. “These *require* the court to grant relief if the attorney admits neglect, even if the neglect was *inexcusable*.” (*Ibid.*)

Initial Considerations

“[E]lectronic exhibits ***must include*** electronic bookmarks with links to the first page of

each exhibit and with bookmark titles that identify the exhibit number or letter and briefly describe the exhibit.” (Cal. R. Ct. 3.1110 (f)(4) emphasis added.)

Defendant submits their Exhibits to Motion to Set Aside which consists of 70 pages of exhibits without any bookmarks or identification of what is attached where. This includes almost 50 pages of emails, which includes several separate chains in no discernable order, attached as a single exhibit without descriptions thereof or references in the brief to the particular pages of that exhibit being referenced.

Plaintiff’s declaration in support of its opposition is 24 pages and includes 6 exhibits – none of which have bookmarks with a description thereof.

The above drastically increased the time required by the Court to review the evidence submitted by the Parties. Counsel are reminded to comply with the Rules of Court going forward.

Analysis

Stop & Save Gasoline – Timeliness

A motion to set aside a default “shall be made within a reasonable time, *in no case exceeding six months*, after the judgment, dismissal, order, or proceeding was taken.” (Cal. Code Civ. Proc. § 473 (b).) The “six-month time limit for granting statutory relief [under 473 (b)] is jurisdictional and the court may not consider a motion for relief made after that period has elapsed.” (*Manson, Iver & York v. Black* (2009) 176 Cal.App.4th 36, 42 citing *Stevenson v. Turner* (1979) 94 Cal.App.3d 315, 318; see also, *Younessi v. Woolf* (2016) 244 Cal.App.4th 1137, 1147.)

The Default against Stop & Save was entered on February 20, 2025. Accordingly, any motion to set aside needed to be filed on or before August 20, 2025. Defendant’s motion was filed on March 4, 2026 – over six months too late.

Defendant Stop & Save argues that because the default was “entered more than six months ago, relief is sought under the Court’s inherent equitable powers to set aside a default for extrinsic fraud.” Defendant cites no law to indicated that the Court can set aside an untimely default under its “inherent equitable powers.” Nor does Defendant explain why it would be entitled to such relief if it were available.

Every memorandum of points and authorities “must contain a statement of facts, *a concise statement of the law*, evidence and arguments relied on, and a discussion of the statutes, cases, and textbooks cited in support of the position advanced.” (Cal. R. Ct. 3.1113 (b).) Rule 3.1113 prevents the “trial court from being cast as a tacit

advocate for the moving party's theories by freeing it from any obligation to comb the record and the law for factual and legal support that a party has failed to identify or provide." (*Quantum Cooking Concepts, Inc. v. LV Associates, Inc.* (2011) 197 Cal.App.4th 927, 934.)

"After six months from entry of default, a trial court may still vacate a default on equitable grounds even if statutory relief is unavailable." (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 981.) Extrinsic fraud or mistake "usually arises when a party is denied a fair adversary hearing because he has been 'deliberately kept in ignorance of the action or proceeding, or in some other way fraudulently prevented from presenting his claim or defense.'" (*Manson, Iver & York*, supra, 176 Cal.App.4th at 47 quoting *Kulchar v. Kulchar* (1969) 1 Cal.3d 467, 471.)

"Examples of extrinsic fraud are: ... failure to give notice of the action to the other party, and convincing the other party not to obtain counsel because the matter will not proceed (and then it does proceed). [Citation.] The essence of extrinsic fraud is one party's preventing the other from having his day in court.'" (*Sporn v. Home Depot USA, Inc.* (2005) 126 Cal.App.4th 1294, 1300 quoting *City and County of San Francisco v. Cartagena* (1995) 35 Cal.App.4th 1061, 1067.) "Extrinsic fraud only arises when one party has in some way fraudulently been prevented from presenting his or her claim or defense." (*Ibid.*)

Plaintiff did nothing to prevent Stop & Save from having its day in court. Defendant Stop & Save was properly served with the summons and complaint. Default was properly entered on February 20, 2025, and Defendant was served with notice of the request for default on that same date. Plaintiff did nothing to prevent Defendant from responding to the default. (*Sporn*, supra, 126 Cal.App.4th at 1300-01, finding no extrinsic fraud where "Plaintiff did nothing to prevent defendant from having its day in court. Defendant was properly served with the summons and complaint and the request to enter default.")

Defendant argues that Plaintiff's August 19, 2025, email indicating that Plaintiff would seek entry of default against Stop & Save and Mr. Azzya if the parties could not resolve the matter was 'fraudulent' and misleading since Plaintiff had already obtained Stop & Save's default – thereby supporting their argument of extrinsic fraud. Defendant Stop & Save, however, had already been served with the notice of default in February. As such, it had notice this statement was incorrect – and was likely a typo wherein Plaintiff meant to indicate that it would seek default against the two

individual defendants: Mr. Azzya and Mr. Ahmed.

“An essential requirement to obtain relief from a judgment on grounds of extrinsic fraud is that defendant demonstrate a satisfactory excuse for not defending the action.” (*Sporn*, supra, 126 CalAP.4th at 1301 citing *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 982.) Defendant Stop & Save was given notice of the request for Default in February 2025. It did nothing to address the complaint until November 14, 2025 when it attempted to file a demurrer and motion to strike – which were rejected by the Court due to the default. Counsel then appeared at a CMC on November 26, 2025, wherein the Court noted the default and ordered counsel to (1) meet and confer regarding stipulating to set aside the default or (2) “file a motion to set aside default against Defendant.”

No stipulation or motion to set aside was filed. Instead, Defendant Stop & Save then attempted to file another demurrer on December 4, 2025 (without first addressing the default) – which was again rejected due to the outstanding default. It was then notified of Plaintiff’s request for entry of court judgment on January 22, 2026. It then waited an additional six weeks, until March 4, 2026, to file the instant motion to set aside. None of the above evidences a “satisfactory excuse for not defending the action.”

Based on the above, the motion to set aside is **denied** as to Stop & Save.

Defendants Ahmed and Azzya

Plaintiff received defaults against Defendant Ahmed on November 25, 2025, and Defendant Azzya on December 29, 2025. As such, those defendants were required to file their motions for relief by May 25 and June 29, 2026, respectively. The motion for relief was filed on March 4, 2026 – as such, they are within the six-month absolute limit.

“[T]he court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney’s sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect vacate any . . . resulting ... dismissal entered against his or her client....” (Code Civ. Proc. § 473, subd. (b).) Relief under CCP § 473, subdivision (b) does not require Counsel to explain why he made the mistake, nor does it require him to show that the mistake was excusable. (*Martin Potts & Associates, Inc. v. Corsair, LLC* (2016) 244 Cal.App.4th 432, 439.) Accordingly, 473(b) “at most demand[s] an attorney’s candid, full, and

straightforward acknowledgment of his or her error; they do not speak to the reasons for those errors.” (*Ibid.*)

“Under the traditional *discretionary* provisions of section 473, a party seeking relief on the basis of its attorney’s neglect must show that the neglect was *excusable*.” (*Metropolitan Service Corp. v. Casa de Palms, Ltd.* (1995) 31 Cal.App.4th 1481, 1487.) An entirely different standard exists under the mandatory relief provisions in section 473. “These *require* the court to grant relief if the attorney admits neglect, even if the neglect was *inexcusable*.” (*Ibid.*)

Plaintiff argues that mandatory relief is not available to these defendants because counsel’s declaration is ‘not credible, establishes no causation, and admits nothing.’

Defendant’s counsel, Mr. Sahelian, filed a declaration indicating that he was in contact with Plaintiff’s counsel regarding the issues related to the failure to complete the payments of the settlement proceeds related to the Underlying Action. (Sahelian Decl. ¶¶ 3-9.) On October 25, 2024, Plaintiff’s counsel emailed Mr. Sahelian and informed him that his client “instructed us to proceed with filing a breach of contract lawsuit against the defendants in this case and that is what we are going to do.” (Sahelian Decl. Ex. 1 at p. 41.) Mr. Sahelian admits that he did not believe Plaintiff would file a second suit regarding this issue and “paid little attention to it....” (Sahelian Decl. ¶ 9.) He confirms: “This was solely my fault, not my clients.” (*Ibid.*)

He then details other errors he made in attempting to file a demurrer and motion to strike on behalf of all three defendants when Defendant Stop & Save had already been defaulted. (*Id.* ¶ 12.) He indicates that after the CMC on November 26, 2025, he emailed Plaintiff’s counsel to stipulate to set aside Stop & Save’s default, but “Plaintiff did not cooperate.” (*Id.* ¶ 15.) He then attempted to file another demurrer on December 2 – which was also rejected by the Court due to the outstanding defaults. (¶ 16.) He does not explain why he took this action instead of filing a motion to set aside the default – which is what the Court instructed him to do at the November 26 CMC.

Instead, Mr. Sahelian appears to have done nothing to protect his clients’ interests for over three more months. During that time the third default was taken against Defendant Azzya. Finally, on March 4, 2026 – over three months after the Court instructed him to file a motion to set aside the defaults (unless a stipulation could be arranged), Mr. Sahelian finally filed the instant motion.

All the above demonstrates that the defaults were entered entirely due to Mr. Sahelian's actions – or, more properly, inactions. There is no indication that his clients were aware of what was going on or instructing him to delay and/or fail to respond to the complaint in this matter. Plaintiff does not present any evidence indicating as much either. Instead, the evidence appears to show that Mr. Sahelian acted completely unreasonably in failing to respond to the Complaint on behalf of his clients.

Under the mandatory provisions of § 473, the Court is “*require[d]* to grant relief if the attorney admits neglect, even if the neglect was *inexcusable*.” (*Metropolitan Service Corp.*, supra, 31 Cal.App.4th at 1487.) Here, Mr. Sahelian's actions are inexcusable – but that does not mean that his clients should be denied their day in court.

Plaintiff points out some discrepancies in Mr. Sahelian's declaration. While some of the dates outlined by Mr. Sahelian do not appear to track the record of events these inconsistencies do not detract from the overall statements that Mr. Sahelian acted negligently and that his actions directly impacted his clients. His clients should not be punished for their attorney's inadequate actions.

Based on the above, the motion is **granted** as to Defendants Ahmed and Azzya.

Conclusion

The California Supreme Court has set forth, over the years, the principles to be applied by a court involving motions for relief from default. Perhaps the three most significant are these:

- “[T]he policy of the law is to have every litigated case tried upon its merits, and it looks with disfavor upon a party, who, regardless of the merits of the case, attempts to take advantage of the mistake, surprise, inadvertence, or neglect of his adversary.” (*Au-Yang v. Barton* (1999) 21 Cal.4th 958, 963 quoting *Weitz v. Yankosky* (1966) 63 Cal.2d 849, 855.)
- “Because the law favors disposing of cases on their merits, ‘any doubt in applying [CCP] section 473 must be resolved in favor of the party seeking relief from default.” (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 980 quoting *Elston v. City of Turlock* (1985) 38 Cal.3d 227, 233.)
- “[V]ery slight evidence will be required to justify a court in setting aside the default.” (*Elston*, supra, 38 Cal.3d at 233)

The instant motion is untimely as to Defendant Stop & Save Gasoline and therefore is **denied** as to it. The motion is **granted** as to Defendants Ahmed and Azzya. The defaults entered on November 25 and December 29, 2026, are set aside. Those individual Defendants shall file their responsive pleading within 10 days of notice of entry of the order on this motion.

9. 9:00 AM CASE NUMBER: C25-02254

CASE NAME: REID GREENLAW VS. TERESA TRUONG

*HEARING ON MOTION IN RE: TRIAL PREFERENCE

FILED BY: GREENLAW, REID

TENTATIVE RULING:

Before the Court is Plaintiff's motion for trial preference, originally set for hearing on September 11, 2026 at 9:00 a.m. (one week before the hearing on Defendant's motion to compel arbitration.) Plaintiff moved *ex parte* for an order shortening time and the hearing was advanced to May 26, 2026. The Court understands there may have been some confusion regarding an initial rejection of the Plaintiff's *ex parte* application, which led to that application ultimately being unopposed. The Court also notes that Defendants have moved *ex parte* to advance the hearing on their pending motion to compel arbitration, currently set for September 28, 2026.

Plaintiff, relying on *Vinokur v. Superior Court* (1998) 198 Cal.App.3d 500 (*Vinokur*), contends the right to trial preference supersedes the right to arbitrate. (Motion at 7:11-14; Reply at 3:1-6.) *Vinokur* states, "The instant case thus presents a conflict between a statute enacted in order to ensure that senior litigants do not lose the right to have their cases litigated because of delays in setting trial dates [citation], and another statute intended principally as a device for easing a growing burden on our courts and to be encouraged or required 'whenever possible.' Under these circumstances section 36, which is 'mandatory and absolute in its application,' is unquestionably the controlling authority, and the competing interest of the arbitration statute must yield in order to ensure older litigants have their day in court. Notwithstanding the simplified and often efficient procedures of the arbitration mechanism, a party who is dissatisfied with an arbitration award retains the right to have a de novo trial (§ 1141.20), in which case the trial date will be set far beyond 120 days from the date the case was ordered into arbitration. Moreover, we find no convincing reason to accord trial preference to parties over age 70 when the amount in controversy exceeds \$50,000, while denying the right simply because less money is

at stake.” (*Id.*, at p. 503; Footnote 7 omitted.)

However, *Vinokur* is distinguishable because that case involved judicial arbitration pursuant to Civil Code section 1141.11. This case involves contractual arbitration. (See generally, Defendants’ Motion to Compel Arbitration and Stay Action.) Additionally, *Laswell v. AG Seal Beach, LLC* (2010) 189 Cal.App.4th 1399 holds that the right to trial preference does not supersede the right to arbitrate. (*Id.* at 1409-1410 [“Laswell’s advanced age and the trial court’s decision to grant her trial preference have no relevance to whether Code of Civil Procedure section 1281.2, subdivision (c) applies and, given it does not, whether to grant the petition to compel arbitration.”].)

In light of the forgoing, the Court **continues** the hearing on the motion for trial preference to August 7, 2026 at 9:00 a.m. The Court also **advances** the hearing on the motion to compel arbitration to the same date.

Defendants are ordered to serve Plaintiff with notice of entry of this order.

10. 9:00 AM CASE NUMBER: C25-02836

CASE NAME: MOFOLUSO OLALEMI AND FAMILY VS. BAY AREA LEGAL AID CONTRA COSTA COUNTY REGIONAL OFFICE

HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT

FILED BY: BAY AREA LEGAL AID CONTRA COSTA COUNTY REGIONAL OFFICE

TENTATIVE RULING:

Defendants Bay Area Legal Aid (“Legal Aid”) and Shaunita Hampton (“Hampton”, together with Legal Aid, “Defendants”) bring this demurrer to the first amended complaint (“Complaint”) of plaintiff Mofoluso Olalemi (“Plaintiff”). Defendants challenge Plaintiff’s: (1) first cause of action for professional negligence/legal malpractice; (2) second cause of action for breach of fiduciary duty; (3) third cause of action for breach of contract; (4) fourth cause of action for negligent misrepresentation; (5) fifth cause of action for violation of the violence against women act; (6) sixth cause of action for discrimination in violation of Title VI; and (7) seventh cause of action for discrimination in violation of the Fair Employment and Housing Act.

Plaintiff has not filed a formal opposition to the instant demurrer but addresses some arguments in her Complaint.

For the reasons discussed below, Defendants’ demurrer is **SUSTAINED** without leave to amend as to the cause of action asserting a Violence Against Women Act claim.

The demurrer is **SUSTAINED** with leave to amend as to the remaining causes of action. Plaintiff may file and serve an amended complaint within 15 days of notice of entry of this order. (Code Civ. Proc. § 472b; CRC, rule 3.1320(g).)

Meet and Confer

The meet and confer requirement has been satisfied. (Inna Nytochka Decl., ¶ 5; Code Civ. Proc., § 430.41, subd. (a)(3)(A).)

Legal Standard for Demurrer

In ruling on a demurrer, a court must treat as true all properly pleaded material facts contained in the complaint, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) “We also accept as true facts which may be inferred from those expressly alleged.” (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405.) A demurrer challenges “the sufficiency of the allegations in a complaint as a matter of law,” not the truth of the factual allegations in the pleading or the pleader’s ability to prove those allegations. (*Id.*, at pp. 1404-1405.)

Questions of fact cannot be decided on demurrer. (*Berryman v. Merit Prop. Mgmt., Inc.* (2007) 152 Cal.App.4th 1544, 1556.) Because a demurrer tests only the sufficiency of the complaint, a “court will not consider facts which have not been alleged in the complaint unless they may be reasonably inferred from the matters which have been pled or are proper subjects of judicial notice.” (*Hall v. Great W. Bank* (1991) 231 Cal.App.3d 713, 718, fn.7.) “[A]t the demurrer stage the complaint must be construed in the light most favorable to the plaintiff.” (*Wilson v. Houston Funeral Home* (1996) 42 Cal.App.4th 1124, 1138.)

“Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) “However, leave to amend should not be granted where, in all probability, amendment would be futile.” (*Foroudi v. The Aerospace Corp.* (2020) 57 Cal.App.5th 992, 1000 [citations and internal quotes omitted].)

Background: Facts Alleged in Complaint

Plaintiff filed the initial complaint in this matter on October 8, 2025. Plaintiff filed the instant Complaint on January 27, 2026.

The Complaint alleges that on July 9, 2024, Plaintiff retained Shaunita Hampton of Legal Aid for an unlawful detainer eviction Plaintiff was facing while she was residing in San Ramon. (Complaint, p. 2.) Plaintiff alleges that she entered into a retainer agreement with Hampton and Legal Aid, and the agreement stated that “BayLegal will help Client by: Will reach out to opposing counsel to communicate settlement offer. Will investigate if we can rep later.” (*Id.* at p. 3.) Plaintiff alleges that the agreement specifically provided that “If after investigating or researching the case, BayLegal believes that negotiations are warranted based on the merits of the case. BayLegal may start those negotiations on behalf of Client. Client understands that BayLegal may decide not to negotiate for Client. Client also understands that if BayLegal does negotiate for Client, BayLegal will keep Client updated about the negotiations. and BayLegal will not settle the case without Client's agreement.” (Complaint, pp. 3-4.)

There are a few issues that are repeated throughout the Complaint. The first is that Defendants “abandoned representation” of Plaintiff at an August 9, 2024 settlement conference. (Complaint, p. 9.) The second is a representation from Defendants that they would attend the “next court date” although there was no subsequent court date scheduled. (*Ibid.*) The third is the contractual clause relating to Defendants’ obligation to “reach out to opposing counsel to communicate a settlement offer,” which is alleged to have not occurred. (Complaint, pp. 3, 30.) Plaintiff also alleges that Defendants did not properly advise her on settlement issues and disability accommodations. (Complaint, pp. 18-23, 29.)

Plaintiff’s eviction was related to an inability to pay rent, which arose from being disabled, unemployed, a single mother, and a victim of domestic violence. (Complaint, p. 12.) Plaintiff seeks \$5,000,000.00 in compensatory damages, punitive damages, and emotional distress damages. (Complaint, p. 15.)

Judicial Notice

The Court takes judicial notice, sua sponte, of the fully executed Stipulation and Order from Contra Costa Superior Court case no. MS24-0492 (*Shapell Norcal Rental Properties, LLC v Mofoluso Olalemi*), signed by Commissioner Yamamoto on August 9, 2024. (Code of Civ. Proc., § 452, subd. (d).)

Discussion

Legal Malpractice Is Not Sufficiently Pled

To state a claim for legal malpractice a plaintiff or cross-complainant must allege facts showing: “(1) the duty of the attorney to use such skill, prudence, and diligence as members of his or her profession commonly possess and exercise; (2) a breach of that duty; (3) a proximate causal connection between the breach and the resulting injury; and (4) actual loss or damage resulting from the attorney’s negligence.” (*Landmark Screens, LLC v. Morgan, Lewis & Bockius, LLP* (2010) 183 Cal.App.4th 238, 247-248 [quoting *Coscia v. McKenna & Cuneo* (2001) 25 Cal.4th 1194, 1199].)

Here, Plaintiff alleges that “Defendant Shaunita Hampton and Bay Area Legal Aid Contra Costa County Regional Office had a duty to exercise the standard of care of a reasonable attorney in handling The Plaintiff’s case.” (Complaint, p. 16.) Plaintiff further alleges that “Defendant Shaunita Hampton and Bay Area Legal Aid County Regional Office breached this duty by failing to prepare for Plaintiff for the trial very well and failed to follow Plaintiff to the Court as agreed in the retainer to represent Plaintiff.” (*Ibid.*)

However, the Complaint does not allege that the retainer agreement required Defendants to prepare her for trial or follow her to court. (See generally, Complaint.) Plaintiff alleges that the retainer agreement provided that Defendants would “reach out to opposing counsel to communicate [a] settlement offer. Will investigate if we can rep later.” (Complaint, p. 3.) Plaintiff further alleges that the retainer agreement provided that “If after investigating or researching the case, BayLegal believes that negotiations are warranted based on the merits of the case. BayLegal may start those negotiations on behalf of Client. Client understands that BayLegal may decide not to negotiate for Client. Client also understands that if BayLegal does negotiate for Client, BayLegal will keep Client updated about the negotiations. and BayLegal will not settle the case without Client’s agreement.” (*Id.* at pp. 3-4.)

In light of the retainer agreement not requiring Defendants to prepare Plaintiff for trial or follow Plaintiff to court, Defendants’ demurrer to Plaintiff’s cause of action for legal malpractice is SUSTAINED with leave to amend.

Breach of Fiduciary Duty Is Not Sufficiently Pled

To state a claim for breach of fiduciary duty a plaintiff must plead “the existence of a fiduciary relationship, its breach, and damage proximately caused by that breach.” (*Thomson v. Canyon* (2011) 198 Cal.App.4th 594, 604.) Here, Plaintiff asserts that the fiduciary duty arose by virtue of the attorney-client relationship and that Defendants

breached the fiduciary duty by “following the Court session on August 9, 2024, Plaintiff made multiple attempts to contact Defendant for essential follow-up guidance and legal counsel. Despite the urgency of the matter and Plaintiff's reasonable need for immediate attorney consultation, Defendant failed to answer or return any of Plaintiff's calls.” However, as per the retainer agreement, Defendants were only to reach out to opposing counsel to communicate a settlement offer. (Complaint, p. 3.) On August 9, 2024, a settlement was reached and became an order of the Court as it was also signed by Commissioner Yamamoto on August 9, 2024. Defendants had no remaining obligations to Plaintiff after August 9, 2024. Further, Plaintiff alleges in the Complaint Defendants’ representation of her ended on August 9, 2024, and there was a withdrawal of representation communicated to her on that date. (Complaint, p. 17.)

In light of the above, Defendants’ demurrer to Plaintiff’s cause of action for breach of fiduciary duty is SUSTAINED with leave to amend.

Breach of Contract Is Not Sufficiently Pled

To state a claim for breach of contract, Plaintiff must allege, “(1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff.” (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.) Plaintiff alleges that:

Plaintiff and Defendant entered into a contract for legal services.
which required Defendant to provide competent representation . . .
Defendant breached this contract by failing to fulfill her obligations
under the agreement. . . As a result of Defendant’s breach, Plaintiff
suffered damages, including but not limited WE BECAME
HOMELESS, FINANCIAL LOSS, EMOTIONAL DISTRESS, ADVERSE
LEGAL OUTCOMES.

(Complaint, p. 15.)

Here, Defendants correctly argue on page 9 of their demurrer that Plaintiff has failed to allege facts showing her performance under the contract. In light of this, Defendants’ demurrer to Plaintiff’s cause of action for breach of contract is SUSTAINED with leave to amend.

Negligent Misrepresentation Is Not Sufficiently Pled

“The elements of negligent misrepresentation are well established. A plaintiff must prove the following in order to recover. [M]isrepresentation of a past or existing material fact, without reasonable ground for believing it to be true, and with intent to induce another’s reliance on the fact misrepresented; ignorance of the truth and justifiable reliance on the misrepresentation by the party to whom it was directed; and resulting damage...” (*Shamsian v. Atlantic Richfield Co.* (2003) 107 Cal.App.4th 967, 983; *West v. JPMorgan Chase Bank, N.A.* (2013) 214 Cal.App.4th 780, 792.)

“Negligent misrepresentation is a species of fraud or deceit specifically requiring a ‘positive assertion’ [citation] or ‘assertion’ [citation] of fact. [Citation.] An ‘implied’ assertion or representation is not enough.” (*Wilson v. Century 21* (1993) 15 Cal.App.4th 298, 306.) This claim must be pled with specificity. (See *Small v. Fritz Companies, Inc.* (2003) 30 Cal.4th 167, 184.)

Plaintiff alleges:

The Defendant made material misrepresentations to the Plaintiff regarding settlement negotiations and case status. Specifically, the Defendant improperly required the Plaintiff to execute documents that were the attorney’s responsibility to sign, including settlement agreements and disability reasonable accommodation requests. This delegation of the attorney’s duties to the client resulted in opposing counsel treating the Plaintiff's case documentation as lacking credibility and legal weight.

The Defendant Shaunita Hampton made false representations of fact to the Plaintiff, unacceptable and unprofessional statements about settlement offers and case status. She made Plaintiff to sign all the document that she was supposed to sign like the settlement terms, THE DISABILITY REASONABLE ACCOMMODATION which resulted in the plaintiff lawyer not to take My case documentation serious and Valuable. The Defendant’s breach of reasonable communication with her Client: she failed to answer or return any of Plaintiff calls. This demonstrated a disregard for her duty to maintain reasonable communication with her client. The Defendant's breach of fiduciary duty was a direct and proximate cause of the Plaintiff's damages. The Defendant’s conduct was outrageous and caused the Plaintiff severe emotional distress.

The Defendant knew of should have known that these

representations regarding the settlement agreement were false or misleading. Specifically, when the opposing counsel rejected her settlement proposal and proceeded with their own terms, and I mentioned to her that the opposing counsel rejected my own terms that she wrote for me, and she never said anything about it. It became evidence that Defendant's prior representations about the settlement process and likely outcomes were inaccurate.

(Complaint, pp. 17-18.)

Defendants argue that Plaintiff's allegations fail to describe any specific misrepresentations, and to the extent they do, they concern future events. (Demurrer, pp. 9-10.)

After evaluating Plaintiff's allegations in support of her negligent misrepresentation claim, none of Plaintiff's allegations can properly be described as misrepresentations about past or existing material facts alleged with specificity.

In light of this, Defendants' demurrer to Plaintiff's cause of action for negligent misrepresentation is SUSTAINED with leave to amend.

FEHA Discrimination Is Not Sufficiently Pled

The Fair Employment and Housing Act ("FEHA") prohibits discrimination in employment and housing. (Gov. Code, §§ 12926, 12940.) As Defendants point out, there are no allegations in the Complaint to support that Defendants were employers of Plaintiff or provided her with housing. (Demurrer, p. 10; *see generally*, Complaint.)

In light of this, Defendants' demurrer to Plaintiff's cause of action for FEHA discrimination is SUSTAINED with leave to amend.

Violence Against Women Act Is Not Sufficiently Pled

Defendants argue that there is no private right of action under the Violence Against Women Act. (Demurrer, p. 11.) It is true that the United States Supreme Court has held that the civil remedy provisions of the Violence Against Women Act were not properly enacted by Congress and are thus unenforceable. (*United States v. Morrison* (2000) 529 U.S. 598, 627.)

In light of this, Defendants' demurrer to Plaintiff's cause of action for violation of the

Violence Against Women Act is SUSTAINED without leave to amend.

Title VI Discrimination Is Not Sufficiently Pled

To state a claim under Title VI, a plaintiff must allege the defendant entity is engaged in prohibited discrimination and is involved in receiving federal financial assistance. (See *Joseph v. Boise State Univ.*, (D. Idaho 2024) 998 F.Supp.2d 928, 944.) Defendants argue that Plaintiff has failed to plead any facts showing that they intentionally discriminated against her based on any protected characteristics. (Demurrer, p. 11.) Plaintiff asserts that the discrimination is satisfactorily alleged, in that she alleged that Hampton told her that she had “no legal counsel” for Plaintiff and abruptly terminated a phone call during Plaintiff’s issue conference on August 9, 2024, and that Defendants “complete failure to provide services promised in the retainer agreement, combined with affirmative misrepresentations about attending court proceedings, demonstrates treatment that falls below the standard BayLegal provides to other clients.” (Complaint, p. 35.)

The Court agrees with Defendants that the allegations Plaintiff has asserted do not show discrimination on the part of Defendants.

In light of this, Defendants’ demurrer to Plaintiff’s cause of action for Title VI Discrimination is SUSTAINED with leave to amend.

Ruling on the Demurrer

The Court **SUSTAINS** Defendants’ demurrer to the cause of action asserting a Violence Against Women Act claim without leave to amend. The Court **SUSTAINS** Defendants’ demurrer to the remaining causes of action with leave to amend. Plaintiff may file and serve an amended complaint within 15 days of notice of entry of this order. (Code Civ. Proc. § 472b; CRC, rule 3.1320(g).)

11. 9:00 AM CASE NUMBER: C25-02836
CASE NAME: MOFOLUSO OLALEMI AND FAMILY VS. BAY AREA LEGAL AID CONTRA COSTA COUNTY
REGIONAL OFFICE
*HEARING ON MOTION IN RE: STRIKE 1ST AMENDED COMPLAINT
FILED BY: MOFOLUSO OLALEMI AND FAMILY
TENTATIVE RULING:

This motion is denied as moot as Defendants’ demurrer is SUSTAINED in full. See Line 10 above.

12. 9:00 AM CASE NUMBER: C25-03644
CASE NAME: RENITA WILSON VS. RICHMOND HOUSING AUTHORITY
*HEARING ON MOTION IN RE: JUDICIAL PREFERENCE
FILED BY: WILSON, RENITA
TENTATIVE RULING:

Case is settled and motion was withdrawn by the moving party.

13. 9:00 AM CASE NUMBER: C26-00103
CASE NAME: RODRIGO GARCIA VS. FIGUEROA TANK LINES INC.,
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: SAMSARA, INC.,
TENTATIVE RULING:

Hearing **continued** by the Court to August 14, 2026 in Department 32.

14. 9:00 AM CASE NUMBER: L24-03719
CASE NAME: MIDLAND CREDIT MANAGEMENT INC. VS. TYISHA PAULK
*HEARING ON MOTION IN RE: TO SET ASIDE DEFAULT
FILED BY: PAULK, TYISHA
TENTATIVE RULING:

This is a collection action. Plaintiff filed a complaint against Defendant on May 7, 2024 and default judgment was entered on February 5, 2025. Defendant filed the instant motion to set aside default and default judgment on February 27, 2026. Defendant argues that she was never served with the complaint and the default and default judgment are void as a result.

There was no timely opposition filed to the motion to set aside default, and accordingly, Plaintiff is deemed to have conceded Defendant's arguments. (The Court notes that a late opposition was submitted, though it is not clear that it was served on Plaintiff.) The failure to challenge a contention in a brief results in the concession of that argument. (*DuPont Merck Pharmaceutical Co. v. Sup. Ct.* (2000) 78 Cal.App.4th 562, 566 (“By failing to argue the contrary, plaintiffs concede this issue.”); *Westside Center Associates v. Safeway Stores 23, Inc.* (1996) 42 Cal.App.4th 507, 529 (“failure to address the threshold question...effectively concedes that issue and renders its remaining arguments moot”); *Glendale Redevelopment Agency v. Parks* (1993) 18 Cal.App.4th 1409, 1424 (issue is impliedly conceded by failing to address it).)

For the foregoing reasons, the Court **grants** Defendant's motion to set aside default and default judgment. **Defendant is ordered to file a responsive pleading by July 16, 2026.**

In addition, the court notes this action is for less than \$5,000 in damages and is properly heard in the court presiding over limited jurisdiction civil matters. The court transfers and assigns this case for all purposes to Judge Athanasiou, Department 14, currently located in the George C. Carroll Courthouse at 100-37th Street, Richmond, CA 94806.

The court orders the parties to appear at a Case Management Conference in this matter on September 14, 2026 at 8:30 a.m. in Department 14. You may appear remotely by Zoom.

Parties are ordered to file and serve a Case Management Conference Statement ten (10) days in advance of September 14, 2026. The Case Management Conference form is Judicial Council form CM-110. The form can be found at <https://courts.ca.gov/sites/default/files/courts/default/2024-11/cm110.pdf>

To attend by Zoom, please go to the Court's website (<https://contracosta.courts.ca.gov/online-services/court-calendars-and-remote-appearances>) and find the Zoom link for Dept. 14 under "Court Calendars and Remote Appearances."

15. 9:00 AM CASE NUMBER: MSC21-00779
CASE NAME: TEDENEKILSH ZERHIOUN VS. YOSEPH DEMISSIE
*HEARING ON MOTION IN RE: TO ENFORCE JUDGMENT AND FOR ISSUANCE OF WRIT OF POSSESSION
FILED BY: DEMISSIE, YOSEPH
TENTATIVE RULING:

Defendants Hareg Teffera and Yoseph Demissie's motion to enforce the judgment is **continued to August 7, 2026, for further briefing.**

On September 16, 2022, Judge Baskin entered the judgment in this case. The judgement gave Plaintiff 90 days to buyout Defendant. (Judgement ¶15(a).) If Plaintiff is unable to buyout Defendant in 90 days the judgment requires that "the Property will be sold to the highest bidder after being listed. The proceeds of the sale will be divided equally between the parties, less the commission and the mortgage and any

expenses incurred in the course of closing escrow.” (Judgement ¶5(b).)

Because of posttrial motions, there was some confusion about when the 90 days ran, however, on March 20, 2023, Judge Douglas entered an order giving Plaintiff 90 days to complete the buyout process. The order stated that if Plaintiff could not complete the buyout within 90 days then the parties should mutually agree on a real estate agent for sale of the property, or if they cannot agree, each side shall provide two real estate agents to the Court. (March 20, 2023 Order.)

In May 2023, Plaintiff filed a motion to stay sale of the property, arguing that Defendants had prevented her from completing the buyout process. On September 6, 2023, Judge Douglas denied the motion. “The Court finds that Plaintiff has been unable to buy out Defendants and that Defendants' conduct did not prevent Plaintiff from completing the buyout. Therefore, it is now time for the property to be sold to the highest bidder.” (September 6, 2023 Order.) Judge Douglas also appointed Mariama Gebeyehou, East Bay Realtor, DRE 01951088, to act as the listing agent with Hartlove of Dudum Real Estate Group to act as listing agent as the alternative option if Gebeyehou is not willing or able to act as listing agent. (Id.)

Plaintiff appealed the September 6, 2023 order. The Court of Appeal affirmed the order on August 27, 2025. (See Memorandum Opinion in case no. A168634.)

An appeal does not automatically stay a judgment ordering the sale or delivery of possession of real property. (Code of Civil Procedure Section 917.4.) Thus, Defendants continued to try to sell the property. In July 2024, Defendants sought permission to sell the property to the highest bidder. The Court approved the sale of the property on August 26, 2024. The Court then entered two separate orders instructing the Elisor to sign the necessary documents for sale of the property. (September 24, 2024 Order; October 28, 2024 Order.) The Court also ordered that escrow funds from the sale of the property shall be deposited with the Court until further orders for disposition. (September 18, 2024 Order.) This sale apparently fell through.

Plaintiff has remained in possession of the property since this lawsuit was initiated. Defendants argue that Plaintiff was ordered to make monthly payments while she remained in possession. Defendants and their attorney state that Plaintiff stopped making her monthly payments of \$1,380 in September 2023. (Webb dec. ¶16; Teffera dec. ¶¶16-7; Demissie dec. ¶17.) While such an order sounds likely, Defendants

did not provide a copy of that order nor provide the date upon which it was entered. Given the voluminous post-judgment filings, the Court has yet to locate this order.

The Court denies Plaintiff's request for sanctions included in the opposition. The Court also denies Plaintiff's request that she be given the opportunity to buy the property through a special process where she buys out Defendants. Plaintiff is free, however, to bid on the property when it is listed for sale on the open market.

Additional information is necessary regarding the claimed monthly payments and the request for an order requiring Plaintiff to vacate the property. Therefore, this matter is continued for further briefing as follows:

The Court is inclined to reaffirm the prior orders regarding sale of the property to the highest bidder, instructions for the elisor to sign the necessary documents and instructions regarding escrow of funds from the sale. Defendants shall provide a proposed order that includes all the terms requested.

Defendants shall provide copies of all orders that address the post-judgment monthly payments by Plaintiff. If Defendants have additional evidence on the need for the property to be vacant in order for it to be sold, they may provide that evidence.

Defendants proposed order and supplemental filings shall be filed and served by July 10, 2026.

Plaintiff may file and serve a response by July 24, 2026.

Discovery Law & Motion

16. 9:01 AM CASE NUMBER: C25-00486
CASE NAME: EMAN MUTHANNA VS. OPPORTUNITY HOUSING GROUP, INC.
***HEARING ON MOTION FOR DISCOVERY TO QUASH DEPOSITION SUBPOENAS FOR PRODUCTION OF BUSINESS RECORDS**
FILED BY: ESTATE OF ADEEP MUTHANNA
TENTATIVE RULING:

Before the court is Plaintiff's motion to quash or in the alternative modify the deposition subpoenas for production of business records issued on February 18, 2026 to T-Mobile USA, INC. (T-Mobile), American Medical Response, Inc., Contra

Costa Fire Protection District, Pleasant Hill Police Department and the Contra Costa County Office of the Sheriff.

The Defendants assert that the parties have resolved the issues involving American Medical Response, Inc., Contra Costa Fire Protection District, Pleasant Hill Police Department and the Contra Costa County Office of the Sheriff, and only the issue of cell phone records remains for the court's adjudication. (Defendant's Opposition to Motion to Quash (Opposition), filed 6/12/16 at 2: 7-16; Declaration of Mark J. D'Argento (D'Argento Decl.), Ex. 4.) Plaintiff's Reply brief did not mention the emergency response, fire, or law enforcement agency issues. Plaintiff's Reply to Defendant's Opposition filed June 18, 2026 (Plaintiff's Reply.) The court concludes from that omission that the Defendants' assertion is correct that the only issues remaining before the court relate to a subpoena the Defendants issued on February 18, 2026 to T-Mobile (Subpoena) for records from the cell phone of Adeep Muthanna (Decedent).

Plaintiffs are the estate and surviving parents and siblings of Adeep Muthanna, who died on February 18, 2023 by "apparent carbon monoxide poisoning." (Opposition at 1:22-23; Plaintiff's Notice of Motion and Motion to Quash, (Motion) at 3: 3-4.) The court does not take these allegations to be true but considers them only to understand the factual context defining the scope of the discovery dispute.

The original scope of the Subpoena's request was, "Any and all cell phone records from 2/18/22 to the present, including but not limited to call logs, text logs, and data usage logs pertaining to cell phone #925-219-4255." (Opposition, at 2: 18-19.) This request sought cell phone records from a time period beginning one year prior to the decedent's death on February 18, 2023. During the meet and confer process Defendants agreed to reduce the temporal scope of the Subpoena to 30 days prior to the incident. (Opposition, at 2: 23-25.) Plaintiffs object to the reduced temporal length of 30 days prior to the incident. (Motion at 3: 6-7.)

Plaintiffs request that the subpoena be quashed in its entirety, and in the alternative a protective order, in camera review before disclosure to counsel, limiting the scope of the document request to call-log records only, excluding text-message logs, meta data and data usage information, and to limit the time period to February 17-28, 2023. (Reply, at 5: 11-21.)

Plaintiffs misapprehend the broad nature of the Discovery Act. Section 2017.010 of the Code of Civil Procedure (CCP) provides in relevant part:

Unless otherwise limited by order of the court in accordance

with this title, any party may obtain discovery regarding any matter, not privileged, that *is relevant to the subject matter* involved in the pending action or to the determination of any motion made in that action, *if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence*. Discovery may relate to the claim or defense of the party seeking discovery or of any other party to the action.

CCP § 2017.010 (emphasis added).

The Discovery Act provides that the court “shall limit the scope of discovery” if it determines the burden, expense or intrusiveness of that discovery “clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence.” CCP § 2017.020(a). Here, there is no burden to the Plaintiffs. This is a subpoena to a third party. The Plaintiffs do not have to conduct a search of anything. There is little to no expense to having a third party respond to a subpoena. The Plaintiffs have not asserted any objection based on intrusiveness.

Plaintiffs’ main argument is Defendant has not made a “showing” to warrant discovery. They argue, “Defendants have not articulated any defense theory under which the decedent’s text communications in the month preceding the incident bear on whether the garage door malfunctioned or whether carbon monoxide accumulated. No comparative negligence theory has been identified. No suicide theory has been pled. No distraction defense has been articulated. There is no showing that a 30 day sweep of private communications would materially advance any cognizable defense.” (Motion, at 4: 13-21.)

Plaintiffs’ argument that such a “showing” is required is overly restrictive. The statutory standard is “matter, not privileged, that *is relevant to the subject matter* involved in the pending action or to the determination of any motion made in that action, *if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence*.” CCP § 2017.01, emphasis added.

To begin with, the Plaintiffs have not identified a privilege. (Motion, at 4-5.)

It also appears that Plaintiffs may not assert a privacy right to the decedent’s cell phone contents on behalf of the decedent. The court in *People v. Clymer* (2024) 107 Cal. App. 5th 131, 141 recognized, “It is well settled that the right of privacy is

purely a personal one; it cannot be asserted by anyone other than the person whose privacy has been invaded ... ' [Citations omitted.] Further, the right does not survive but dies with the person." (finding no 4th Amendment violation in warrantless search of a cell phone belonging to a deceased person). Plaintiffs' attempts to distinguish *Clymer* are unsupported by legal authority.

The Defendants assert that "There is no explanation for how or why the [garage] door would malfunction by closing after the [Decedent's] car entered, or why it could not be manually opened by the Decedent using the operational override lever, or why Decedent did not simply have [sic] turned his car engine off if the door had indeed become stuck. Moreover, the Defendants have presented evidence in discovery that supports the operability of the garage door." (Opposition, at 3: 16-23.)

The court finds, in this factual context, that the Defendant's requested discovery is reasonably calculated to lead to the discovery of admissible evidence. The Defendants do not have to "plead" a suicide theory in order to obtain this discovery. The Decedent's activities, plans, thoughts and intent before and at the time of death are directly relevant to the subject matter of this litigation. Cell phone records from the 30 day period prior to the decedent's death are reasonably calculated to lead the discovery of admissible evidence. If the garage door were truly "stuck" as Plaintiffs assert, an examination of phone records is reasonably calculated to admissible evidence – for example by way of texts or phone calls from the Decedent seeking help with the garage door. If the door were not stuck, phone records might lead to admissible evidence such as suicide related messages to others or diary entries, research regarding suicide-related or death-related topics, farewell messages, receipt of threatening messages from third parties, receipt of messages concerning future events that were unsavory, or to be feared. Alternatively, information pointing away from a suicidal intent, such as messages regarding the Decedent's plans for the future are also reasonably calculated to lead to the discovery of admissible evidence. Whether the garage door malfunctioned or not, the discovery of the decedent's cell phone information for a 30 day period prior to the death is reasonably calculated to lead to the discovery of admissible evidence.

The Plaintiff's motion to quash the Subpoena is **denied**. T-Mobile must produce, "Any and all cell phone records from **January 19, 2023 to February 18, 2023**, including but not limited to call logs, text logs, and data usage logs pertaining to cell phone #925-219-4255."

The parties are directed to submit a Stipulated Protective Order governing the

production of all documents in this litigation.

Unless and until the parties stipulate to a Protective Order, the court orders that all documents produced pursuant to the Subpoena to T-Mobile may be used only for the purposes of this litigation, and may not be disclosed to any third party for any purpose, absent further court order.

Plaintiff's request for sanctions is denied.

Issue Conferences

17. 10:00 AM CASE NUMBER: C23-01814
CASE NAME: CIRCLE PIZZA, LLC VS. ADRIANA PENA
HEARING IN RE: PROVE UP HEARING. PARTIES MAY APPEAR VIA ZOOM.
FILED BY:
TENTATIVE RULING:

Parties to appear.

**Law & Motion
Add On**

18. 9:00 AM CASE NUMBER: C25-03235
CASE NAME: ABDUL LATIFI VS. SAMMAH ENTERPRISE INC.
*HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL
FILED BY: LATIFI, ABDUL
TENTATIVE RULING:

The unopposed motion of attorney Gaynee Ghandilyan (SBN 327818) and Bibiyan Law Group, P.C. to be relieved as counsel for the Plaintiff Abdul Latifi is **granted**.

The court will sign the proposed order submitted on Judicial Council form MC-053 lodged with the Court on April 13, 2026 and file it.

The order relieving counsel will become effective upon attorney Ghandilyan's filing of the proof of service of the signed order upon Plaintiff.